

August 17, 2026
Dept. 9
Probate Tentative Rulings

1.	26PR0198	ESTATE OF KARLA M. SMART
SPOUSAL PROPERTY HEARING		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON SEPTEMBER 14, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 17, 2026.

Petitioner is the Personal Representative of the Estate of David Kevin Smart. David Kevin Smart ("Surviving Spouse") was the surviving spouse of Decedent, Karla M. Smart ("Decedent"), who died intestate June 26, 2022. Decedent was survived by Surviving Spouse and two sisters. Surviving Spouse died February 16, 2026. Prior to his death, he did not perfect title by removing Decedent's name as a community property owner. No petition to administer the estate has been filed.

The Subject Property was purchased on October 15, 1996, and was titled in joint tenancy. On October 26, 1998, Decedent and Surviving Spouse executed a Grant Deed transferring to themselves as Husband and Wife as Community Property, which was recorded on November 10, 1998. Petitioner asserts, based on title initially having been taken in joint tenancy, that Decedent and Surviving Spouse would have taken title as Community Property with Right of Survivorship in 1998 had said form of title been available at that time. Petitioner asserts he has not discovered any writings making a different distribution of the subject property. Petitioner requests Decedent's half of the Subject Property be confirmed to Surviving Spouse, David K. Smart.

Probate Code § 100(a) provides that "[u]pon the death of a person who is married or in a registered domestic partnership, one-half of the community property belongs to the surviving spouse and the other one-half belongs to the decedent."

Probate Code § 6401(a) states: "As to community property, the intestate share of the surviving spouse is the one-half of the community property that belongs to the decedent under Section 100."

Probate Code § 13500 provides that "when a spouse dies intestate leaving property that passes to the surviving spouse under Section 6401, . . . the property passes to the survivor . . . , and no administration is necessary."

Probate Code 13650 authorizes a surviving spouse to file a petition requesting an order that administration of all or part of an estate is not necessary because all or part of the estate is property passing to the surviving spouse.

August 17, 2026
Dept. 9
Probate Tentative Rulings

The Petition in this case identifies residential real property that is the subject of the Petition.

Notice of the hearing on the Petition was served on Petitioner and Decedent's sisters and proof of service was filed with the Court on July 7, 2026.

Petitioner has not provided documentation (i.e., grant deed) reflecting the ownership of the Subject Property. Upon proof at the hearing, Petitioner's request is granted.

TENTATIVE RULING #1:

CONTINGENT UPON PROOF OF THE GRANT DEED, AND ABSENT OBJECTION, THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR BY ZOOM, PLEASE CONTACT THE COURT AT (530) 621-5867 AND MEETING INFORMATION WILL BE PROVIDED.